

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 06/03/2026

Case #	Case Name	Tentative
01490361	Holland – Trust	TENTATIVE RULING Case: Holland – Trust 01490361 Calendar No.: 1 Date: 06/03/26 MOTION TO DISMISS (ROA 24) Respondent Dale Schmaltz, trustee of the Mary Jo Holland Trust, ("Respondent") moves for an order dismissing "the petition" filed by Petitioner Jacqueline Radell ("Petitioner"). Petitioner filed an initial "Petition to Compel Accounting, Remove Trustee, and Set Aside Fraudulent Transfer of Property from Trust" on 6/17/25. (ROA 2.) Petitioner filed an Amended Petition on 7/7/25, seeking essentially the same relief. (ROA 18.) Since an amended petition supersedes an initial petition, the court presumes that Respondent is moving to dismiss the Amended Petition, though the moving papers only vaguely refer to "the petition." Respondent's motion to dismiss is what has been referred to as a "nonstatutory speaking motion," i.e., a motion to dismiss an action based on extrinsic evidence. Such motions have been superseded by statute. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5 ["The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only

		where it complies with the requirements for a motion for summary judgment”]; <i>Union School Dist. v. Rafferty</i> (1964) 226 Cal.App.2d 599, 603 [“speaking motion” to dismiss action as sham “has been superseded by the enactment of Code of Civil Procedure, section 437c, and must be treated as a motion for summary judgment”].) Respondent’s motion to dismiss does not comply with procedural requirements of a motion for summary judgment. The court may treat a nonstatutory motion to dismiss as a nonstatutory motion for judgment on the pleadings. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5.) A motion for judgment on the pleadings functions as a general demurrer for failure to state facts sufficient to constitute a cause of action, and the rules governing demurrers apply. (Code of Civ. Proc. § 438(c)(1)(B)(ii); <i>Smiley v. Citibank</i> (1995) 11 Cal.4th 138, 146; <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999); <i>Templo v. State of Calif.</i> (2018) 24 Cal.App.5th 730, 735 [“motion for judgment on the pleadings is equivalent to a demurrer”].) Demurrers and motions for judgment on the pleadings can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal. 3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.) Respondent has not requested that the court take judicial notice of any matter. On its own motion, the court takes judicial notice of the judgment (ROA 107) in the Unlawful Detainer action (OCSC Case no. 30-2024-01415172) in which Respondent had Petitioner evicted from trust real property. The judgment in the Unlawful Detainer action only establishes that the trustee owns the subject property, that the trustee gave Petitioner notice to quit, and that Petitioner failed to vacate the subject property. In short, the judgment in the Unlawful Detainer action resolves the narrow issue of the right to possession of the subject property. It does not resolve Petitioner’s claim in her Amended Petition in this action that the Trustee engaged in self-dealing by improperly transferring the subject property to himself. Thus, there are no grounds to grant judgment on the grounds of res judicata or collateral estoppel. Respondent’s argument that the petition is moot relies on extrinsic evidence and is, therefore, not subject to judgment on the pleadings.
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